

MASTER SERVICES AND TECHNOLOGY COLLABORATION AGREEMENT

(FICTIONAL SPECIMEN DOCUMENT — FOR SOFTWARE TESTING PURPOSES ONLY)

This document contains no real parties, obligations, or legal effect.

by and between

VANTREE SYSTEMS, INC.

("Provider")

and

CASCADIA MERIDIAN HOLDINGS, LLC

("Client")

Effective Date: March 17, 2025

Agreement Reference No.: VTS-CMH-2025-0317

Governing Law: State of Delaware, United States

SECTION 1. PARTIES

1.1 This Master Services and Technology Collaboration Agreement (this “Agreement”) is entered into as of March 17, 2025 (the “Effective Date”), by and between Vantree Systems, Inc., a corporation organized and existing under the laws of the State of Delaware, with its principal place of business at 4820 Ferro Commons, Suite 310, Wilmington, Delaware 19801 (“Provider”), and Cascadia Meridian Holdings, LLC, a limited liability company organized and existing under the laws of the State of Washington, with its principal place of business at 1190 Larkhaven Way, Tacoma, Washington 98402 (“Client”).

1.2 Provider and Client are each individually referred to herein as a “Party” and collectively as the “Parties.”

1.3 Each Party represents and warrants that it is duly organized, validly existing, and in good standing under the laws of its jurisdiction of formation, and that the individual executing this Agreement on its behalf has full corporate or organizational authority to do so.

1.4 Any notice, consent, or approval required under this Agreement shall be delivered to the addresses set forth above, or to such other address as either Party may designate in writing pursuant to Section 19 (Miscellaneous).

SECTION 2. DEFINITIONS

For purposes of this Agreement, the following capitalized terms shall have the meanings ascribed to them below. Terms not otherwise defined in this Section 2 shall have the meaning ascribed to them elsewhere in this Agreement.

Term	Definition
Affiliate	Any entity that directly or indirectly controls, is controlled by, or is under common control with a Party, where “control” means ownership of more than fifty percent (50%) of the voting securities of such entity.
Agreement	This Master Services and Technology Collaboration Agreement, together with all Exhibits, Schedules, Statements of Work, and amendments incorporated herein by reference.
Authorized Users	Employees, contractors, and agents of Client who are authorized by Client to access or use the Services in accordance with this Agreement.
Confidential Information	Has the meaning set forth in Section 7.1.
Deliverables	Any work product, reports, software, documentation, analyses, or other materials created or delivered by Provider to Client pursuant to a Statement of Work.
Effective Date	March 17, 2025, the date on which this Agreement becomes binding upon the Parties.
Fees	The amounts payable by Client to Provider as set forth in Section 6 and any applicable Statement of Work.

Term	Definition
Personal Data	Any information relating to an identified or identifiable natural person, as further described in Section 9.
Services	The consulting, implementation, data-analytics, and technology-integration services described in Section 5 and any applicable Statement of Work.
Statement of Work	A written order form, work order, or project schedule executed by both Parties that references this Agreement and describes specific Services, Deliverables, timelines, and Fees (each, an “SOW”).
Term	The period during which this Agreement remains in effect, as described in Section 15.
Third-Party Materials	Software, data, or other materials provided by a party other than Provider or Client that are incorporated into or used in connection with the Services.

SECTION 3. PURPOSE

3.1 The Parties enter into this Agreement to establish the general terms and conditions under which Provider shall furnish Client with data-analytics consulting, software-integration, and related technology services in support of Client’s internal logistics-optimization initiative (the “Project”).

3.2 This Agreement is intended to serve as a master framework governing all present and future Statements of Work executed by the Parties, so that individual engagements may be initiated without renegotiating the general terms herein.

3.3 Nothing in this Agreement shall be construed to obligate either Party to enter into any specific Statement of Work, and no obligation to perform or pay for Services shall arise except pursuant to a duly executed SOW.

SECTION 4. SCOPE OF SERVICES

4.1 Provider shall perform the Services described in each Statement of Work in a professional and workmanlike manner consistent with generally accepted industry standards.

4.1.1 Services may include, without limitation: (a) data architecture design and pipeline development; (b) integration of Client’s enterprise resource planning systems with Provider’s analytics platform; (c) development of predictive-modeling dashboards; and (d) training of Client personnel in the use of Deliverables.

4.1.2 Provider shall assign a dedicated engagement lead to serve as the primary point of contact for each active Statement of Work.

4.2 Any change to the scope of Services described in an executed SOW must be documented in a written change order signed by authorized representatives of both Parties (a “Change Order”). No Change Order shall be effective until so executed.

4.3 Provider shall provide Client with monthly progress reports summarizing milestones achieved, hours expended, and any anticipated deviations from the applicable project timeline.

4.4 Client shall provide Provider with timely access to such Client personnel, systems, data, and facilities as are reasonably necessary for Provider to perform the Services. Delays caused by Client's failure to provide such access shall extend applicable deadlines on a day-for-day basis.

SECTION 5. PAYMENT TERMS

5.1 In consideration for the Services, Client shall pay Provider the Fees set forth in the applicable Statement of Work. Unless otherwise specified in an SOW, Fees shall be invoiced monthly in arrears.

5.2 Client shall remit payment within thirty (30) days of the date of each undisputed invoice ("Net 30"). Invoices not disputed in good faith, in writing, within fifteen (15) days of receipt shall be deemed accepted.

5.3 Any undisputed amount not paid when due shall accrue interest at the lesser of one and one-half percent (1.5%) per month or the maximum rate permitted by applicable law.

5.4 The following fee schedule illustrates the standard rate structure applicable under Statements of Work executed pursuant to this Agreement:

Service Tier	Hourly Rate (USD)	Minimum Engagement	Invoicing Cycle
Tier I – Advisory	\$185	10 hours	Monthly
Tier II – Implementation	\$225	40 hours	Monthly
Tier III – Senior Architect	\$310	20 hours	Monthly
Tier IV – Emergency Support	\$450	4 hours	Upon Completion

5.5 Client shall reimburse Provider for reasonable, pre-approved, documented out-of-pocket travel and lodging expenses incurred in connection with the Services, consistent with Client's then-current travel policy, as made available to Provider in writing.

5.6 All Fees are exclusive of applicable sales, use, value-added, or similar taxes, which shall be borne by Client, excluding taxes based on Provider's net income.

5.7 In the event of non-payment beyond sixty (60) days past the original due date, Provider may, upon fifteen (15) days' prior written notice, suspend performance of Services until such amounts are paid in full, without liability for any resulting delay.

SECTION 6. CONFIDENTIALITY

6.1 "Confidential Information" means any non-public, proprietary, or sensitive information disclosed by either Party (the "Disclosing Party") to the other (the "Receiving Party"), whether disclosed orally, in writing, electronically, or by observation, that is designated as confidential or that a reasonable person would understand to be confidential given the nature of the information and circumstances of disclosure.

6.2 Confidential Information includes, without limitation, business plans, financial data, customer lists, source code, system architecture, pricing, and the terms of this Agreement, but excludes information that: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was rightfully known to the Receiving Party prior to disclosure; (c) is independently developed without reference to the Confidential Information; or (d) is rightfully received from a third party without restriction.

6.3 The Receiving Party shall: (a) use Confidential Information solely to perform its obligations or exercise its rights under this Agreement; (b) protect such information using at least the same degree of care it uses to protect its own confidential information, and in no event less than a reasonable degree of care; and (c) limit access to Confidential Information to employees, contractors, and advisors with a legitimate need to know and who are bound by confidentiality obligations no less protective than those herein.

6.4 If the Receiving Party is compelled by law, regulation, or valid legal process to disclose Confidential Information, it shall, to the extent legally permissible, provide the Disclosing Party with prompt prior written notice so that the Disclosing Party may seek a protective order or other appropriate remedy.

6.5 Upon termination or expiration of this Agreement, or upon the Disclosing Party's written request, the Receiving Party shall promptly return or destroy all Confidential Information in its possession, except that it may retain a single archival copy solely for legal or compliance purposes, subject to the continuing confidentiality obligations herein.

6.6 The obligations set forth in this Section 6 shall survive termination or expiration of this Agreement for a period of five (5) years, except with respect to trade secrets, which shall be protected for so long as such information retains trade-secret status under applicable law.

SECTION 7. INTELLECTUAL PROPERTY

7.1 Each Party retains all right, title, and interest in and to its pre-existing intellectual property, including any tools, methodologies, software, templates, or know-how developed prior to or independently of this Agreement ("Background IP").

7.2 Subject to full payment of all applicable Fees, Provider hereby assigns to Client all right, title, and interest in and to the Deliverables specifically created for Client under an SOW, excluding any Background IP or Third-Party Materials incorporated therein.

7.3 Provider hereby grants Client a non-exclusive, worldwide, royalty-free, perpetual license to use any Background IP of Provider that is incorporated into the Deliverables, solely to the extent necessary for Client to use and enjoy the Deliverables for their intended purpose.

7.4 Client grants Provider a limited, non-exclusive, revocable license to access and use Client's data, systems, and materials solely to the extent necessary to perform the Services.

7.5 Neither Party shall remove, obscure, or alter any proprietary notices (including copyright and trademark notices) appearing on any materials provided by the other Party.

7.6 Nothing herein shall be construed to grant either Party any right, title, or license in the trademarks, trade names, or logos of the other Party without such Party's prior written consent.

SECTION 8. DATA PRIVACY

8.1 To the extent Provider processes Personal Data on behalf of Client in the course of performing the Services, Provider shall do so solely in accordance with Client's documented instructions and applicable data protection laws, including, where applicable, the General Data Protection Regulation and the California Consumer Privacy Act, as amended (collectively, "Data Protection Laws").

8.2 Provider shall implement and maintain appropriate technical and organizational measures designed to protect Personal Data against unauthorized access, disclosure, alteration, or destruction, consistent with industry-standard practices, including encryption of data at rest and in transit, role-based access controls, and periodic security assessments.

8.3 Provider shall notify Client without undue delay, and in any event within seventy-two (72) hours, upon becoming aware of any confirmed unauthorized access to or disclosure of Personal Data (a "Security Incident"), and shall cooperate with Client in investigating and remediating such Security Incident.

8.4 Provider shall not transfer Personal Data outside the jurisdiction in which it was originally collected without first implementing appropriate safeguards required under applicable Data Protection Laws, such as standard contractual clauses or equivalent mechanisms.

8.5 Upon termination of the applicable SOW, Provider shall, at Client's election, return or securely delete all Personal Data processed on Client's behalf, except to the extent retention is required by applicable law.

8.6 Provider shall maintain records of its data-processing activities sufficient to demonstrate compliance with this Section 8 and shall make such records available to Client upon reasonable request, no more than once annually absent a Security Incident.

SECTION 9. NON-DISCLOSURE AGREEMENT (NDA)

9.1 This Section 9 supplements, and does not replace, the confidentiality obligations set forth in Section 6, and applies specifically to any Confidential Information exchanged in connection with pre-contractual discussions, proposals, or due diligence undertaken prior to the execution of a specific Statement of Work.

9.2 Each Party agrees that any Confidential Information disclosed during preliminary discussions regarding a prospective engagement shall be treated as "Evaluation Material" and shall be used solely to evaluate the feasibility of such prospective engagement.

9.3 Neither Party shall disclose the existence, terms, or substance of any discussions regarding a prospective Statement of Work to any third party, other than to its officers, employees, and professional advisors who have a bona fide need to know, without the prior written consent of the other Party.

9.4 The obligations under this Section 9 shall remain in effect for a period of three (3) years from the date of disclosure of the relevant Evaluation Material, irrespective of whether a subsequent Statement of Work is executed.

9.5 In the event of a breach or threatened breach of this Section 9, the non-breaching Party shall be entitled to seek injunctive relief in addition to any other remedies available at law or in equity, without the necessity of posting a bond, to the extent permitted by applicable law.

SECTION 10. RESPONSIBILITIES OF BOTH PARTIES

10.1 Provider Responsibilities

10.1.1 Perform the Services with due care, skill, and diligence consistent with generally accepted industry standards.

10.1.2 Assign qualified personnel with relevant experience to each Statement of Work.

10.1.3 Maintain reasonable business continuity and disaster recovery procedures applicable to the Services.

10.1.4 Promptly notify Client of any circumstance that is reasonably likely to materially affect the timeline, cost, or quality of the Services.

10.2 Client Responsibilities

10.2.1 Provide accurate, complete, and timely information reasonably requested by Provider in connection with the Services.

10.2.2 Designate a project sponsor with sufficient authority to make decisions relating to the Project.

10.2.3 Obtain and maintain any third-party licenses or consents necessary for Provider to access Client's systems or data.

10.2.4 Promptly review and provide feedback on Deliverables within the timeframes specified in the applicable Statement of Work.

10.3 Neither Party shall be responsible for delays or failures in performance to the extent caused by the other Party's failure to fulfill its responsibilities under this Section 10.

SECTION 11. WARRANTIES

11.1 Provider warrants that the Services will be performed in a professional and workmanlike manner consistent with generally accepted industry standards by personnel possessing the skill and experience reasonably necessary to perform such Services.

11.2 Provider warrants that, to its knowledge, the Deliverables will not infringe the intellectual property rights of any third party, provided that this warranty shall not extend to Third-Party Materials or modifications made by Client without Provider's consent.

11.3 Client warrants that it has all rights, licenses, and consents necessary to provide any data, systems, or materials to Provider for use in connection with the Services.

11.4 EXCEPT AS EXPRESSLY SET FORTH IN THIS SECTION 11, THE SERVICES AND DELIVERABLES ARE PROVIDED "AS IS," AND PROVIDER DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING, WITHOUT LIMITATION, ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT.

11.5 Client's sole and exclusive remedy for breach of the warranties in this Section 11 shall be, at Provider's election, re-performance of the non-conforming Services or a refund of the Fees paid for such non-conforming Services.

SECTION 12. LIMITATION OF LIABILITY

12.1 TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS, REVENUE, DATA, OR BUSINESS OPPORTUNITY, ARISING OUT OF OR RELATING TO THIS AGREEMENT, REGARDLESS OF THE THEORY OF LIABILITY, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

12.2 EXCEPT FOR THE EXCLUDED CLAIMS DEFINED IN SECTION 12.3, EACH PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID OR PAYABLE BY CLIENT TO PROVIDER UNDER THE APPLICABLE STATEMENT OF WORK DURING THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

12.3 The limitations set forth in Sections 12.1 and 12.2 shall not apply to: (a) either Party's indemnification obligations under Section 13; (b) breaches of Section 6 (Confidentiality) or Section 9 (NDA); (c) either Party's gross negligence or willful misconduct; or (d) either Party's infringement of the other Party's intellectual property rights (collectively, the "Excluded Claims").

12.4 The Parties acknowledge that the limitations set forth in this Section 12 are an essential basis of the bargain between them and shall apply notwithstanding the failure of any limited or exclusive remedy.

SECTION 13. INDEMNIFICATION

13.1 Provider shall defend, indemnify, and hold harmless Client, its officers, directors, and employees from and against any third-party claims, damages, and reasonable expenses (including reasonable attorneys' fees) arising out of: (a) Provider's gross negligence or willful misconduct; or (b) any claim that a Deliverable infringes a third party's valid intellectual property rights, subject to the exclusions in Section 11.2.

13.2 Client shall defend, indemnify, and hold harmless Provider, its officers, directors, and employees from and against any third-party claims, damages, and reasonable expenses (including reasonable attorneys' fees) arising out of: (a) Client's gross negligence or willful misconduct; or (b) Client's use of the Deliverables in violation of this Agreement or applicable law.

13.3 The indemnified Party shall: (a) promptly notify the indemnifying Party in writing of any claim subject to indemnification; (b) grant the indemnifying Party sole control of the defense and settlement of such claim, provided that no settlement imposing liability or obligations on the indemnified Party shall be entered into without its prior written consent; and (c) provide reasonable cooperation, at the indemnifying Party's expense.

13.4 If a Deliverable becomes, or in Provider's reasonable opinion is likely to become, the subject of an infringement claim, Provider may, at its option and expense: (a) procure for Client the right to continue using the Deliverable; (b) replace or modify the Deliverable to be non-infringing while providing substantially equivalent functionality; or (c) if neither is commercially reasonable, terminate the applicable SOW and refund a pro-rata portion of the Fees paid for the affected Deliverable.

SECTION 14. TERM AND TERMINATION

14.1 This Agreement shall commence on the Effective Date and shall remain in effect for an initial term of two (2) years (the “Initial Term”), unless earlier terminated in accordance with this Section 14.

14.2 Following the Initial Term, this Agreement shall automatically renew for successive one (1) year periods (each, a “Renewal Term,” and together with the Initial Term, the “Term”), unless either Party provides written notice of non-renewal at least sixty (60) days prior to the expiration of the then-current Term.

14.3 Either Party may terminate this Agreement or any Statement of Work for cause if the other Party materially breaches this Agreement or such SOW and fails to cure such breach within thirty (30) days after receiving written notice specifying the breach in reasonable detail.

14.4 Either Party may terminate this Agreement immediately upon written notice if the other Party: (a) becomes insolvent or makes an assignment for the benefit of creditors; (b) files, or has filed against it, a petition in bankruptcy that is not dismissed within sixty (60) days; or (c) ceases to conduct business in the ordinary course.

14.5 Client may terminate this Agreement or any Statement of Work for convenience upon sixty (60) days’ prior written notice, subject to payment of Fees for Services performed through the effective date of termination and any non-cancellable commitments reasonably incurred by Provider prior to receipt of such notice.

14.6 Upon termination or expiration of this Agreement for any reason: (a) Client shall pay all Fees accrued through the effective date of termination; (b) each Party shall return or destroy the other Party’s Confidential Information as provided in Section 6.5; and (c) Sections 6, 7, 8, 9, 11.4, 12, 13, 16, 17, and 19 shall survive termination.

SECTION 15. DISPUTE RESOLUTION

15.1 The Parties shall attempt in good faith to resolve any dispute, claim, or controversy arising out of or relating to this Agreement (a “Dispute”) through good-faith negotiation between senior executives of each Party with authority to resolve the Dispute, within thirty (30) days of a written request by either Party.

15.2 If the Dispute is not resolved through negotiation within such thirty (30) day period, either Party may submit the Dispute to mediation administered by a mutually agreed mediator prior to initiating arbitration or litigation.

15.3 If the Dispute remains unresolved sixty (60) days after the initial written request under Section 15.1, either Party may submit the Dispute to final and binding arbitration administered by the American Arbitration Association under its Commercial Arbitration Rules, before a single arbitrator, seated in Wilmington, Delaware.

15.4 The arbitrator’s award shall be final and binding upon the Parties and may be entered as a judgment in any court of competent jurisdiction. Each Party shall bear its own costs and attorneys’ fees, unless the arbitrator determines otherwise.

15.5 Notwithstanding the foregoing, either Party may seek injunctive or other equitable relief in any court of competent jurisdiction to prevent irreparable harm pending the outcome of arbitration.

SECTION 16. GOVERNING LAW

16.1 This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict-of-laws principles.

16.2 Subject to Section 15 (Dispute Resolution), the Parties consent to the exclusive jurisdiction and venue of the state and federal courts located in New Castle County, Delaware, for any action not subject to arbitration.

16.3 The Parties expressly waive application of the United Nations Convention on Contracts for the International Sale of Goods, to the extent it would otherwise apply.

SECTION 17. FORCE MAJEURE

17.1 Neither Party shall be liable for any delay or failure to perform its obligations under this Agreement (other than payment obligations) to the extent such delay or failure results from an event beyond its reasonable control, including, without limitation, acts of God, natural disaster, fire, flood, epidemic or pandemic, war, terrorism, civil unrest, governmental action, labor dispute, or failure of third-party telecommunications or utility infrastructure (each, a “Force Majeure Event”).

17.2 The Party affected by a Force Majeure Event shall promptly notify the other Party in writing, describing the nature of the event and its anticipated duration, and shall use commercially reasonable efforts to mitigate its effects and resume performance as soon as reasonably practicable.

17.3 If a Force Majeure Event continues for more than sixty (60) consecutive days, either Party may terminate the affected Statement of Work upon written notice, without liability other than payment for Services satisfactorily performed prior to the Force Majeure Event.

SECTION 18. MISCELLANEOUS

18.1 Independent Contractors. The Parties are independent contractors, and nothing in this Agreement shall be construed to create a partnership, joint venture, agency, or employment relationship between them.

18.2 Assignment. Neither Party may assign this Agreement, in whole or in part, without the prior written consent of the other Party, except that either Party may assign this Agreement without consent in connection with a merger, acquisition, or sale of substantially all of its assets, provided the assignee assumes all obligations hereunder.

18.3 Notices. All notices under this Agreement shall be in writing and delivered by hand, overnight courier, or certified mail, return receipt requested, to the addresses set forth in Section 1 or such other address as a Party may designate in writing.

18.4 Entire Agreement. This Agreement, together with all Exhibits and Statements of Work, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior or contemporaneous agreements, understandings, and communications, whether written or oral.

18.5 Amendment. This Agreement may be amended only by a written instrument signed by authorized representatives of both Parties.

18.6 Severability. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect, and the invalid provision shall be modified to the minimum extent necessary to render it enforceable.

18.7 Waiver. No waiver of any provision of this Agreement shall be effective unless in writing and signed by the waiving Party, and no such waiver shall be construed as a waiver of any other provision or of the same provision on a future occasion.

18.8 No Third-Party Beneficiaries. This Agreement is intended solely for the benefit of the Parties and their permitted successors and assigns, and confers no rights upon any other person or entity.

18.9 Counterparts. This Agreement may be executed in counterparts, including by electronic signature, each of which shall be deemed an original, and all of which together shall constitute one instrument.

18.10 Publicity. Neither Party shall issue any press release or public statement regarding this Agreement without the prior written consent of the other Party, except as required by applicable law or regulation.

18.11 Export Compliance. Each Party shall comply with all applicable export control and economic sanctions laws in connection with its performance under this Agreement.

SECTION 19. SIGNATURES

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives as of the Effective Date first written above.

VANTREE SYSTEMS, INC.

Signature

Name: Marcus D. Halloway

Title: Chief Commercial Officer

Date: _____

CASCADIA MERIDIAN HOLDINGS, LLC

Signature

Name: Renata Okafor-Blythe

Title: Chief Operating Officer

Date: _____

[END OF AGREEMENT — FICTIONAL SPECIMEN FOR SOFTWARE TESTING PURPOSES ONLY]